

The Port Of New Tuticorin (Rates For The Use Of The Wharf) Rules, 1976

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[Rule THE-PORT-OF-NEW-TUTICORIN-RATES-FOR-THE-USE-OF-THE-WHARF-RULES-1976 of 1976](#)

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[G.S.R. 727, dated 3rd May, 1976. - Whereas a draft of the Port of New Tuticorin \(Rates for the Use of the Wharf\) Rules, 1975, was published as required by sub-section \(2\) of Sec. 6 of the Indian Ports Act, 1908 \(](#)

[15 of 1908](#)

[\) at page 2723 of the Gazette of India, Part II, Sec 3, sub-section \(i\), dated the 20th September, 1975, under the Notification of the Government of India in the Ministry of Shipping and Transport \(Transport Wing\) No. G.S.R. 2419, dated the 3rd September, 1975, inviting objections and suggestions from all persons likely to be affected thereby, till the](#)

2nd December, 1975;

And whereas the said Gazette was made available to the public on the 3rd October, 1975.

And whereas no objections or suggestions have been received from the public on the said draft;

Now, therefore, in exercise of the powers conferred by sub-section (1) of Sec. 6 of the said Act, the Central Government hereby makes the following rules, namely :-

1.

Short title and commencement.

(1)

These rules may be called the Port of New Tuticorin (Rates for the Use of the Wharf) Rules, 1976.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Fixation of rates for the use of wharf.

- Subject to the provisions of these rules, the rates to be charged for the use of wharf at the Port of New Tuticorin shall be as specified in the Schedule (hereinafter referred to as the Schedule) hereto annexed.

3.

Bulk cargo.

- In the case of bulk cargo dues shall be levied on the manifested tonnage subject to the provision that if all the cargo landed and cleared is weighed on the port's weigh bridges, the dues may be levied on the total weight so recorded.

4.

Assessment of goods for shipment.

- All goods intended for shipment shall be assessed on Export Application and the wharf dues shall be paid before the goods are shipped.

5.

Assessment of goods landed.

- All goods landed within the port of New Tuticorin shall be assessed on Import Application and wharf dues shall be paid before the goods are removed outside the said port.

6.

Wharf dues not leviable on ship's fitting etc.

- Wharf dues shall not be leviable on bona fide ship's fittings, dunnage or provisions for the use of ships.

7.

Wharf dues on cargoes in port's transit areas.

- Wharf dues shall be payable on all cargoes admitted to the said port's transit areas for shipment whether they are shipped or having been brought in are taken out without having been shipped except that in the case of cargoes intended for shipment and stored in rented spaces, warehouses or leased plots, wharf dues shall be levied at the time of shipment only.

8.

Goods consigned to or by Administrator exempt from wharf dues.

- Goods consigned to or by the Administrator of the Port of New Tuticorin shall be exempted from the levy of wharf dues.

9.

Tranship Goods.

(1)

Cargo landed on and shipped from the wharf, except as otherwise provided, shall be charged full wharf dues as per the Schedule.

(2)

Through cargo originally manifested at the port of shipment for transshipment landed on the wharf shall be charged full wharf dues as per the Schedule less fifteen per cent.

(3)

Cargo discharged overside and shipped overside (ship to ship) shall be charged at half the wharf dues as per Schedule except in respect of foodgrains manifested for Indian ports and transhipped to smaller vessels from large tankers or bulk carriers within the port limits.

(4)

Cargo manifested for 'local' and subsequently amended at the Port of New Tuticorin for 'transhipment' shall be charged full wharf dues as per the Schedule less fifteen per cent.

(5)

Wharf dues shall be recovered at Re.1 per tonne of foodgrains transhipped into a smaller vessel from tanker or bulk carrier at the port.

10.

Questions as to classification of goods.

- If, for the purpose of application of these rules, any question arises as to the classification of any goods, it shall be referred to the Administrator of the Port of New Tuticorin for decision and the Administrator shall decide the question.

Schedule

[See rule 2]

(1)

Cement

Rs.

8 per tonne.

(2)

Coal

Rs.

6 per tonne.

(3)

Foodgrains

Rs.

8 per tonne.

(4)

Fertilisers.

Rs.9

per tonne.

(5)

Oil-animal, vegetable or mineral in bulk

Rs.

12 per tonne

(6)

Salt

Rs.

8 per tonne.

(7)

Sulphur, rock phosphate, muriate of potash

Rs.

9 per tonne.

(8) [

Ores and minerals]

[Inserted by G.S.R. 121, dated 31st December, 1976]

Rs.

4.00 per tonne.

(9) []

[Re-numbered by G.S.R. 121, dated 31st December, 1976]

Unspecified items

Rs.

12 per tonne or Rs. 9 per cubic metre whichever is higher.

Note 1. - For the purpose of calculating the wharf dues the unit by weight shall be 1 tonne of 1000 kilograms, the unit by

volume measurement shall be 1 cubic metre and the unit by capacity measurement for liquids in bulk shall be 1000 litres.

Note 2. - For the recovery of charges, the gross and not the net unit of each package as specified in the relative invoice or other shipping document shall be taken, subject to test check by the port authorities. In the absence of these documents or the specification of the gross units therein, the units actually arrived at by test check shall be taken as the gross units.

Note 3. - In calculation the gross weight or measurement by volume or capacity of any individual item, fractions up to and including 0.5 shall be taken as 0.5 and fractions over 0.5 shall be taken as one unit.

Note 4. - On packages containing articles of a miscellaneous charter, charges shall be levied at the rate applicable to the article on which the highest rate is chargeable.

Note 5. - In the case of hazardous cargo classified under item 1[(9)] relating to unspecified items 100% of the wharfage shall be recovered over and above the normal dues.

Note 6. - The wharf dues do not include the charges for handling cargo on shore or on board. If handling is done by the port authorities a separate charge of Rs. 3.50 per tonne shall be recovered for each operation.

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